

Nevertheless, plaintiff argues that defendants were properly served under Code of Civil Procedure section 415.20, subdivision (c). Under section 415.2(c), "Notwithstanding subdivision (b), if the only address reasonably known for the person to be served is a private mailbox obtained through a commercial mail receiving agency, service of process may be effected on the first delivery attempt by leaving a copy of the summons and complaint with the commercial mail receiving agency in the manner described in subdivision (d) of Section 17538.5 of the Business and Professions Code." (Code Civ. Proc., § 415.20, subd. (c).)

Here, plaintiff appears to be arguing that defendants were served at The Postal Station, which was their designated CMRA, and thus The Postal Station was authorized to act as defendants' agent for service of process under Business and Professions Code section 17538.5. Consequently, plaintiff argues that service on the CMRA was valid to effect service on defendants.

As a result, the court intends to find that defendants were not properly served with the summons and complaint, and the subsequent default entered against them is void. Consequently, the court intends to grant the motion to set aside the default entered against defendants Andrews and Kicks.

Tentative Ruling

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Tentative Ruling

Re: **Briscoe v. Veer Hospitality, et al.**
Superior Court Case No. 22CECG00066

Hearing Date: June 16, 2026 (Dept. 501)

Motion: Petition to Compromise Claim of Disabled Adult

If oral argument is timely requested, it will be entertained on Tuesday, June 23, 2026, at 3:30 p.m. in Department 501.

Tentative Ruling:

To deny without prejudice. In the event that oral argument is requested Daunte Hall is excused from appearing.

Explanation:

The Petitioner and Guardian ad Litem proposes to deposit \$1,400,000.00 of the net settlement into an annuity, set to make monthly payments to the proposed special needs trust for 30 years. A total of \$485,960.53 is to be transferred into the proposed special needs trust pursuant to Probate Code section 3604. The court generally approves of this arrangement, since this will ensure that receipt of this money will not disqualify Mr. Hall from receiving the public benefits he may now need due to his disabilities. However, Petitioner must show that she has first filed, with the Probate Department, a Petition under Probate Code sections 3600-3613 to establish and fund the special needs trust. The Probate Court is better suited to confirm that the Trust complies with California Rules of Court, Rule 7.903, to ensure that the notice required by Probate Code section 3611, subdivision (c) is given, and to provide for the ongoing court supervision of the trust.

Once the probate petition has been granted, petitioner can then petition this court for approval of the compromise of the disabled adult's claim.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 06/15/26
(Judge's initials) (Date)